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Beyond the liberal legal subject: Relational responsibility, relational autonomy, and the sealing of minor criminal records in China

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ABSTRACT

Criminal records now circulate as persistent digital traces across state databases, commercial background-check systems, and algorithmic infrastructures, creating enduring barriers to social reintegration. This article argues that prevailing sealing regimes, grounded in a liberal conception of the autonomous legal subject who bears individual responsibility for the consequences of past conduct, overlook how record-related harms are produced relationally and structurally, affecting families, employers, and other connected parties who bear no culpability. Through a doctrinal comparison of sealing regimes in the United States, Scandinavia, Canada, and China, this research identifies three structural deficits: the absence of relational harm mapping, the framing of sealing as information control rather than autonomy restoration, and binary responsibility allocation. To address these deficits, the article proposes a Relational Sealing Model comprising relational harm identification, relational autonomy restoration, and relational responsibility redistribution. This model reframes sealing as a forward-looking project of relational justice, in which the state, market actors, and digital platforms share responsibility for rebuilding the conditions for meaningful reintegration.

1. Introduction

In an era in which digital governance permeates both public and private life, criminal records have shifted from paper-based archives to replicable digital data circulating across interdepartmental databases, commercial background-screening systems, and algorithmic infrastructures. Enabled by digital technologies, criminal records are continually re-identified, recombined, and repurposed. Even for minor offenses,¹ digital technologies make their traces difficult to erase (Mayer-Schönberger, 2011), meaning that a

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¹ It must be noted that, in common law jurisdictions such as the United States and the United Kingdom, minor offenses (misdemeanors or summary offenses) carry relatively light penalties, most are capped at six months to one year of imprisonment, and many are punishable only by fines, community service, or administrative sanctions. In China, by contrast, crimes that carry penalties of up to three years of fixed-term imprisonment, are generally classified as minor offenses (Chen, 2023). In addition, although China has not yet formally established a sealing regime for minor criminal records, the 2025 revision of the *Administrative Penalties for Public Security* provides in Article 136 that certain unlawful acts, including prostitution, petty theft, minor robbery, assault, fraud, and disorderly conduct, must be sealed. This reform, to some extent, affirms the analytical direction advanced in this article and indicates that Chinese legislation has begun to acknowledge and address the adverse consequences that the longstanding system of criminal record disclosure imposes on individuals with prior convictions.

one-time unlawful act may be transformed into a long-term or even lifelong stigma that continually affects the opportunity structures of offenders and their families in employment, education, finance, housing, and other key social domains (Braithwaite, 1989). As a result, minor criminal records are no longer merely factual notations between the individual and the state; they become nodal points that penetrate multilayered relational networks and reshape the contours of social membership.

However, existing discussions in criminal law and criminal justice policy concerning criminal records remain largely shaped by the liberal theory of the legal subject (Dworkin, 1988). Prior convictions are typically understood as the negative consequences that individuals ought to bear for their own wrongful conduct, with debates focusing primarily on whether society should extend forgiveness to the particular offender and under what conditions such forgiveness is appropriate. While this line of inquiry is valuable, it falls short of explaining: (1) why the adverse effects of minor criminal records often manifest in group-based, intergenerational, and structurally embedded forms; (2) why digital platforms and employers play such pivotal roles in the reproduction of criminal record information; and (3) why the stigma associated with a prior conviction frequently persists far beyond the temporal and substantive boundaries of legal punishment.

At the practical level, several major jurisdictions have developed distinct approaches to the sealing of minor criminal records. For example, in the United States, the *Pennsylvania Clean Slate Law* established an automated sealing regime under which eligible misdemeanors, certain non-felony offenses, and arrest records that did not result in conviction are automatically sealed by the state once the statutory waiting period has elapsed (Prescott and Starr, 2019). In Canada, the *Criminal Records Act* creates a record suspension system, under which individuals who have completed their sentences and satisfied the relevant waiting period may apply for a record suspension, and once granted, the criminal record is removed from the Canadian Police Information Centre (Dao, 2023). On the other side of the Atlantic, Scandinavian countries have developed relatively mature mechanisms for sealing or restricting criminal records. Sweden adopts an automatic deletion model upon the expiration of a statutory retention period following the completion of the sentence, whereas Norway and Denmark employ a dual-track approach combining time-limited disclosure with automatic deletion in legally prescribed circumstances. China has also instituted a juvenile record-sealing regime and, in 2024, proposed the creation of a sealing mechanism for juvenile criminal records, sparking extensive debate on whether the scope of eligibility should be expanded to include adults (Yao, 2025). These legislations and reforms across different jurisdictions reflect, to varying degrees, a renewed engagement with questions of resocialization, structural inequality, and the collective distribution of responsibility.

Emerging theories of relational responsibility and relational autonomy provide a new perspective for understanding the criminal records and their sealing. These theories posit that the self is not an independently existing entity, but is instead continually constituted within networks of family, community, labor markets, state institutions, and digital platforms; correspondingly, responsibility is not borne solely by the offender, but is distributed in complex ways across these multiple actors (Nedelsky, 2012).

Against this theoretical and institutional backdrop, this article advances two core questions: (1) how should the risks and normative boundaries of minor criminal records in the digital age be reconceptualized through the lenses of relational responsibility and relational autonomy? and (2) how can the governance of criminal records be transformed from an individual-centered model of forgiveness into a process of reallocating responsibility among individuals, the state, and society? Addressing these questions, the article reconsiders responsibility allocation in criminal record governance and seeks to establish a dialogue across criminal law theory, data governance, and comparative criminal justice policy.

The article proceeds as follows. Section 2 establishes the theoretical framework. Section 3 analyzes the diffusion mechanisms of minor criminal records from a relational perspective. Section 4 comparatively examines criminal record governance in the United States, Scandinavia, Canada, and China to identify distinct models of responsibility allocation. Section 5 proposes a Relational Sealing Model comprising relational harm identification, relational autonomy restoration, and relational responsibility redistribution. Section 6 concludes with limitations and directions for future research.

2. Theoretical framework: relational responsibility and relational autonomy

Relational autonomy theory, developed by scholars such as Mackenzie and Stoljar (2000) and Nedelsky (2012), argues that autonomy is not an abstract capacity possessed by individuals in isolation, but a capability generated within institutional arrangements, social structures, and interpersonal networks. This theoretical perspective emphasizes that the role of law is not merely to define boundaries or protect formal rights, but to construct relational architectures that support autonomy. Building on this foundation, Herring (2019) and others have advanced the concept of relational responsibility, contending that responsibility should not be attributed or distributed solely on the basis of individual conduct. Rather, it must be understood within broader institutional contexts, power structures, and patterns of social interaction.

From this perspective, the sealing of minor criminal records should not be conceived merely as an act of forgiveness toward individual offenders. Instead, it constitutes an institutional commitment, jointly undertaken by the state and society, to restoring the relational autonomy of people with criminal histories. This requires enabling them to reestablish dignified lives with genuine opportunities and meaningful choices within the social relationships that shape their everyday existence.

2.1. Relational conceptions of the subject and responsibility

Traditional criminal law constructs the legal subject as an independent, rational individual capable of autonomous decision-making, bearing sole responsibility for his or her actions and their consequences (Frankfurt, 2018). Within this framework, the adverse effects of a criminal record are understood as a natural and normative extension of the offender's own choices. Relational theory, however, challenges this abstraction and isolation of the individual. In summary, relational theory emphasizes that individuals

are never isolated but are shaped within networks of social, institutional, and technological relations. It also holds that human conduct, risk exposure, and future life trajectories are profoundly conditioned by structural factors rather than determined solely by personal choice, and that responsibility is not imposed unilaterally on the individual but is instead distributed in complex ways across institutions, social groups, and technological systems (Christman, 2004; Nedelsky, 2012).

From a relational perspective, an individual's identity, capacities, vulnerabilities, and possibilities are all shaped within social structures, institutional arrangements, and networks of relationships. Criminal behavior rarely originates from the free will of an isolated individual; rather, it is fundamentally the outcome of the combined effects of social structures, institutional conditions, and relational environments. Likewise, the existence and circulation of criminal records are not merely traces left by personal wrongdoing, but are continually amplified, extended, and regenerated within an ecosystem composed of state databases, the background-check industry, digital platforms, and social relations.

Accordingly, under a relational responsibility framework, responsibility cannot be reduced to the individual burden of the offender. In the context of minor criminal records, responsibility is distributed across a wide array of actors. Specifically, the ways in which the state stores and shares data, the ways digital platforms reproduce stigma through algorithms, the ways employers design screening mechanisms, and the ways communities manage stigmatized relationships jointly shape the social consequences of a prior conviction. In other words, the stigma of a criminal record is a structural and relational product, not merely the consequence of individual fault.

Reexamining the allocation of responsibility for minor offenses through the lens of relational subjects and relational responsibility offers a new perspective for designing a sealing regime for minor criminal records. Within this framework, criminal records should not function as tools for imposing collateral consequences on offenders, but should instead be reconceptualized as institutional entry points for relational repair and social support.

2.2. Relational autonomy in criminal law

Liberal criminal law generally assumes that individuals possess full self-determination and are able to exercise choice freely except where constrained by law (Dworkin, 1988). In contrast, the theory of relational autonomy argues that autonomy does not arise from a decontextualized individual will; rather, it depends on stable, secure, and accessible relational conditions, such as economic support, social trust, available resources, and equitable institutional structures (Nedelsky, 2012). When these relational conditions are undermined, individuals may remain formally free, yet in substantive terms lose the capacity to act autonomously.

The erosion of autonomy caused by minor criminal records vividly illustrates this relational vulnerability. In the digital age, criminal records affect far more than employment opportunities (McElhattan, 2024). They also generate persistent exclusion in housing markets, financial systems, educational opportunities, and algorithmically governed aspects of social life (Agan and Starr, 2017). These forms of exclusion arise from relational barriers. Specifically, digital platforms may deny individuals on the basis of automated risk modeling, employers may rely on third-party databases that contain unverified information, and communities may monitor or exclude the family members of offenders through practices of risk labeling. This fragility of relational autonomy is particularly pronounced in China. For example, China's civil service recruitment process requires stringent political background checks, one major component of which is whether an applicant's relatives have criminal records. In certain strict jurisdictions, an individual's criminal record may even affect the government employment prospects of grandchildren (Peng, 2022).

Thus, even if a record is legally sealed, genuine autonomy cannot be restored if institutional structures continue to reproduce exclusion, if social relations lack pathways for reintegration, and if digital platforms can reconstruct criminal labels through residual data or algorithmic inference. Relational autonomy theory therefore suggests that the governance of criminal records should aim not merely at formal concealment, but at rebuilding the relational conditions that support meaningful agency.

2.3. Implications for understanding minor criminal records

In traditional studies of criminal responsibility, a criminal record is treated as the state's negative assessment of an offender based on wrongful conduct, with the offender positioned as the sole bearer of responsibility. This approach compresses complex relational and structural antecedents into a matter of individual fault, overlooking the role of external environments and thereby producing a degree of responsibility misattribution. The governance of minor offenses should instead aim to restore individuals' capacity for action and social participation through a model in which responsibility is jointly borne by the state and society, enabling offenders to reposition themselves within improved relational structures (Dagan and Dorfman, 2016). Accordingly, our conceptualizations of justice, harm, and responsibility require reconsideration.

First, our understanding of justice cannot remain confined to the narrow question of whether individuals should bear the consequences of public access to their past conduct. If the stigma of a criminal record is produced through institutional and technological structures, then the responsibility for governance must extend beyond the individual to include the state, the market, and digital infrastructures. Justice is no longer merely a matter of balancing the risks between offenders and the public. It requires correcting structural distortions, constraining the amplifying effects of technology, and undertaking relational repair as a matter of public policy (Procter-Legg et al., 2024).

Second, our conception of harm must also move beyond individualized moral blame (Manikis, 2022). The harm resulting from a criminal record is not limited to psychological or reputational injury. It encompasses multidimensional, structural forms of disadvantage that affect employment opportunities, social relationships, digital participation, and family life. Such harms can spread across relational layers and even extend to subsequent generations, rendering them relational harms. The nature of these harms demands that sealing regimes incorporate structural interventions rather than rely solely on information concealment to mitigate risk.

Finally, the responsibility structure in the governance of criminal records also requires reconsideration. In the context of digital era, the social consequences of criminal records are often amplified through interactions among multiple actors. Relational responsibility theory reveals that the social effects of criminal records are not merely individual consequences but are jointly produced and amplified by state databases, market-based background screening, and algorithmic profiling. Because these actors actively contribute to generating and perpetuating the harms associated with criminal records, the responsibility for these consequences should not be borne solely by the individual offender but redistributed among the state, market actors, and social institutions in proportion to their respective roles in producing such harms (Bladini and Andersson, 2020).

Before proceeding to the analysis of minor criminal records, it is necessary to clarify the relationship between relational responsibility theory and individual criminal responsibility principles. Relational responsibility theory does not negate the legitimacy of individual attribution, offenders should still bear corresponding responsibility for their unlawful conduct, as this constitutes a fundamental premise for the operation of criminal law. What relational responsibility theory challenges is the practice of reducing all responsibility in criminal record governance to individual attribution. As Viljoen (2021) argues in the context of data governance, individualist governance frameworks are “important but incomplete.” They address vertical relations between individuals and institutions but fail to account for the population-level harms that arise through horizontal data relations. In the criminal record context, this limitation is evident: digital platforms' algorithmic classification, employers' risk-screening mechanisms, and communities' stigma transmission collectively generate the social effects of criminal records through relational networks that no individual offender can control or bear responsibility for alone. Accordingly, the relational sealing model does not exempt offenders from individual responsibility but reveals its insufficiency as the sole basis for criminal record governance. The task of sealing is to correct structural responsibility misalignment, shifting the portion of responsibility attributable away from individual offenders and onto the actors who generate these effects. This reallocation is fully compatible with the principle of personal culpability in criminal law.

3. Relational analysis of minor criminal records in the digital era

3.1. The relational impact of criminal records in the expanding digital environment

In the era of traditional paper archives, the harmful effects of minor criminal records typically faded over time, and the records themselves were difficult to circulate widely. Digitalization, however, has transformed criminal records from judicial documents into open data, integrating them into administrative systems, commercial databases, social media, and news archives.

Digital technology reshapes criminal records in several ways. First, it dramatically increases their searchability and re-identifiability. Judicial opinions, news reports, and online content often contain fragmented clues that can reconstruct personal identity. Through search engines and cross-referencing, these fragments can be reassembled in digital space, allowing criminal records to regain social effect long after the original event (Park, 2019). Second, the involvement of algorithmic technologies incorporates criminal records as input variables in predictive models used for risk assessment, credit scoring, and security surveillance. This not only reinforces the persistence of the records but also embeds them within broader systems of social governance, transforming criminal records from individual historical facts into markers of group-level risk. Third, digital dissemination is inherently asymmetric, meaning that the replicability and virality of online environments make criminal records exceedingly difficult to erase or block, which in turn allows their influence to persist with greater frequency and reach across social networks (Solove, 2022).

Relational approaches to data governance emphasize that data is not isolated information but a carrier of social relations, whose value and harm emerge from the ways it shapes interpersonal networks (Viljoen, 2021). These features of digital technology collectively transform minor criminal records from discrete historical events into socially operative symbols with enduring relational effects. Their digital lives often persist independently of the judicial system and continue to be reactivated across institutional contexts, generating harms far beyond those recognized under traditional understandings.

3.2. Risk governance and the labeling effect in vertical data relations

During the formation and collection of criminal records, vertical data relations emerge as record information is aggregated into interconnected databases. Within vertical systems of investigation, administrative management, public services, and employment regulation, criminal records are commonly treated as risk indicators that support early warning, screening, and decision-making. Risk governance relies on data-driven predictive management, and in this context, minor criminal records become institutionalized as markers of risk.

Although minor offenses are often situational acts, vertical data relations tend to reify them as indicators of enduring personality traits or latent dangerousness. This produces three consequences. First, the criminal act is abstracted into a risk label that becomes detached from its original context. Second, the identity label represented by the criminal record becomes increasingly entrenched through institutional use, preventing individuals from shedding a suspect identity long after their formal punishment has ended (Pressly, 2024). Third, inter-institutional data-sharing mechanisms allow such labels to circulate and expand across administrative and employment systems, enabling criminal records to exert influence across multiple departments.

The labeling effect embedded in vertical data relations reinforces the function of criminal records as institutional classification tools, granting them substantial durability and stickiness within social structures. This durability causes the impact of minor criminal records to extend far beyond the temporal limits of legal sanctions, generating long-term, structural, and relational disadvantages.

3.3. Group association and misattributed linkages in horizontal social relations

Within horizontal data relations, criminal records become incorporated into broader logics of group profiling and social classification. Through statistical correlations, algorithmic filtering, or public discourse, these records often generate inappropriate group-based labels. Innocent third parties who share similar characteristics with individuals who have criminal records may be algorithmically assigned to the same risk group, resulting in unjustified constraints on their autonomy.

Group-based mechanisms in horizontal relations manifest primarily in three forms. First, algorithmic risk-identification systems bind individual records to group traits, causing entire categories of people to be treated as potential risk groups (Ugwudike, 2022). This mechanism produces spillover effects, extending the influence of minor criminal records to others within the same social category. Second, narrative amplification through media and social platforms can transform an individual minor offense into a public impression of a particular region, occupation, or social identity, thereby assigning collective meaning to isolated events. Third, commercial platforms using big-data-driven automated screening systems often label groups based on behavioral patterns, over-associating minor criminal records with variables such as geography, class, appearance, race, or gender, which further expands the scope of stigma (Lageson and Corda, 2024).

These mechanisms of misattributed association in horizontal relations demonstrate that the harms of minor criminal records extend far beyond the individual. Through digital infrastructures and social narrative processes, such harms can ripple across entire groups and communities, producing a clear pattern of structural inequality reproduction. This dynamic reinforces the marginalization of disadvantaged populations and turns minor criminal records into catalysts for group-based social exclusion.

3.4. The need for relational analysis: uncovering the structural dynamics underlying minor criminal records

Minor offenses are often not the product of isolated individual choice but emerge from relational and structural conditions such as poverty, discriminatory policing, family instability, and weak social support. Treating the offender as an autonomous, self-contained actor and imposing prolonged punishment through criminal records misattributes responsibility by collapsing these complex antecedents into individual fault. At the same time, the negative effects generated through vertical and horizontal data relations show that the harms of minor criminal records are no longer individualized consequences but relational injuries produced jointly by institutional structures, technological infrastructures, and social relations. In the digital era, criminal records do not merely persist. They circulate dynamically across institutional logics, algorithmic systems, and public narratives, reshaping individual opportunity structures and group social status.

Empirical research consistently demonstrates a significant association between minor offending and socioeconomic status (Connolly et al., 2017). Residents from low-income and marginalized communities are not only more likely to acquire criminal records due to structural exposure to policing, but also less equipped to mitigate their consequences (DeMarco, 2023). They lack the economic resources to navigate legal processes for record sealing, the social network support to buffer employment discrimination, and access to public services and formal labor markets that are not conditioned on a clean record. In other words, the criminal record system operates in practice as a poverty amplifier, continuously reproducing socioeconomic inequality through the institutionalized transmission of criminal records. This further demonstrates that a criminal record governance model centered on individual responsibility ignores the structural roots of the harms produced by minor criminal records.

Given these multilayered, multi-actor, and multi-mechanism harms, traditional sealing regimes that focus on deletion or limiting disclosure from an individual-rights perspective are insufficient. A relational approach is necessary because it reveals how harms are produced, showing that minor offending often reflects constrained relational conditions rather than purely autonomous choice (Nedelsky, 2012). Thus, a sealing regime must be grounded in relational responsibility, recognizing that the harms of criminal records arise from a network of actors rather than a single source. Responsibility should not rest solely on individuals but should be reasonably distributed across the state, communities, schools, and social service systems. The state bears forward-looking duties to improve structural conditions, communities and institutions carry obligations of support and response, and individuals assume only limited responsibility for their conduct. Within this framework, the governance of criminal records becomes an entry point for relational repair and social support, enabling individuals to regain agency and reintegrate into society in a manner that is more consistent with the normative aims of criminal responsibility (Banwell-Moore, 2024).

4. A comparative law perspective: institutional responses to the sealing of criminal records

Systems for sealing criminal records operate under markedly different institutional logics across national contexts, reflecting how each jurisdiction allocates resocialization responsibility among the state, market actors, and individual offenders. This section examines three contrasting models, the United States, Scandinavian countries (Sweden, Norway, and Denmark), and Canada, before analyzing China's current framework and the challenges it faces in developing a sealing regime. These jurisdictions were selected because they represent high variation in responsibility allocation. For example, the United States exemplifies an individual-responsibility-dominated model, Scandinavian countries embody multi-actor shared responsibility, and Canada occupies an intermediate, state-led position. The comparative analysis proceeds along five dimensions: the structure of responsible actors, the type of sealing or expungement mechanism, information control methods, resocialization support, and the system's functional orientation.

4.1. United States: an individual-responsibility model

Overall, the United States exhibits a criminal record governance model in which individual offenders bear the primary responsibility for resocialization. Criminal records originally serving criminal justice purposes have been extensively incorporated into background-check systems, transforming them into instruments of social evaluation (Denver et al., 2018). In this process, resocialization has not been institutionally integrated into the responsibility frameworks of the state or society but has instead been converted, through data diffusion and risk-screening mechanisms, into a matter of individual self-repair.

At the federal level, no unified criminal record sealing system exists, with only narrow exceptions for juvenile and minor drug offenses. Record-sealing rules are instead determined by individual states, which vary significantly in eligible offense types, waiting periods, and qualifying conditions. Most states provide dual pathways of expungement and sealing, but both rely predominantly on petition-based processes that impose complex procedural burdens on applicants (Prescott and Starr, 2019). Courts and administrative agencies typically act only upon individual petition, rendering the system fundamentally reactive and lacking proactive intervention in the social consequences of criminal records.

In recent years, however, several states have begun transitioning from petition-based to automatic sealing mechanisms, signaling a shift in resocialization responsibility from individual initiative toward proactive state engagement. For instance, California has introduced automatic relief provisions to reduce the procedural burden on individuals (*California Penal Code § 1203.425*). Pennsylvania's transformation is more pronounced. Its Clean Slate Act (Act 56 of 2018) established the nation's first automatic sealing system, non-conviction records are automatically sealed after disposition, while summary offenses and second- and third-degree misdemeanor convictions are automatically sealed after ten years without a subsequent conviction, subject to enumerated exclusions.

Beyond legislative reform, the United States has intervened in offender reentry through resocialization programs, though with limited overall effectiveness. Because the country lacks a unified institutional framework for resocialization support (Tyler and Brockmann, 2017), existing reentry programs operate predominantly as short-term projects or local pilots with limited coverage (Berghuis, 2018). Released individuals continue to face persistent barriers including employment difficulties, housing instability, stigmatization, and health deterioration, particularly among low-income and minority populations, indicating that existing programs are insufficient to substantively offset the long-term exclusionary effects of criminal records (Jonson and Cullen, 2015). Social reintegration thus remains largely a matter of individual self-reliance.

While state involvement in resocialization remains limited, market actors play a more direct role in shaping the social consequences of criminal records. The commercial background-check industry conducts tens of millions of criminal record screenings annually in the United States, with leading firms such as First Advantage and HireRight serving as key intermediaries between criminal justice data and labor market decisions. Criminal record checks have been the most common type, with 83% of employers requiring such information (Lageson, 2026). Although the Fair Credit Reporting Act imposes a seven-year limit on reporting arrest records, it explicitly excludes conviction records, which may be reported indefinitely. "Ban the Box" policies, while implemented in multiple states to restrict criminal history inquiries during initial hiring, do not prohibit employers from obtaining and using such information at subsequent stages (Denver et al., 2018). Criminal records thus maintain high visibility and circulation in the labor market. The marketization of background checks embeds multiple data actors within a single information chain, requiring individuals to separately negotiate with police, courts, and data companies if they want to address adverse consequences. These institutions often adopt exclusionary attitudes toward individuals with records (Madden et al., 2017), further disadvantaging them in the process of seeking remedy and compounding opportunity.

In sum, while some states have undertaken piecemeal reforms to mitigate the long-term adverse effects of criminal records, many others continue to exhibit a criminal record governance model centered on individual responsibility for resocialization. One possible explanation is America's deep tradition of individual subjecthood, which provides the normative foundation for individual criminal responsibility and extends it into a broader logic of personal consequence-bearing. This positioning reinforces the enduring impact of criminal records, transforming them from extensions of criminal liability into instruments of social stratification.

4.2. Scandinavia: a multi-actor shared responsibility model

The criminal record systems of Scandinavian countries are relatively mature, exhibiting a resocialization-oriented model of multi-actor shared responsibility. Under this model, resocialization is understood as a public task requiring both state institutional safeguards and societal support, rather than a private burden left to individual offenders.

The state assumes the primary responsibility for managing criminal records and limiting their long-term social impact. Scandinavian countries employ various mechanisms to control the retention, visibility, and circulation of criminal records, though the specific approaches differ. Sweden provides for automatic deletion of records from the criminal register after statutory periods determined by sentence type, with imprisonment records deleted ten years after release and fines deleted five years after the judgment (*Lag om belastningsregister*, 1998). Norway does not delete criminal records but instead controls their visibility through a tiered conduct certificate (*politiattest*) system established under its Police Information Processing Regulations. Different certificate types, such as ordinary, exhaustive, restricted, and extended, determine which offenses are disclosed and to whom, with each type subject to specific inclusion rules, time limits, and purpose restrictions (*politiregisterforskriften*, 2014). Denmark similarly distinguishes among private certificates, public-purpose certificates, and child criminal record certificates, with a minimum display period of ten years and extending to age 80 or death in serious cases (*Bekendtgørelse nr. 218 af 27, 2001*, §§ 11). Together, these mechanisms demonstrate that Scandinavian states proactively assume institutional responsibility for limiting label diffusion and facilitating resocialization through statutory time limits, certificate stratification, and purpose restrictions.

The Scandinavian commitment to resocialization extends to the institutional shaping of prison environments. Fowler (2015) observes that, unlike American prison architecture centered on isolation, control, and surveillability, Scandinavian prisons adhere to the most humane prison systems, emphasizing natural lighting, open layouts, and living environments approximating daily life to minimize the damage imprisonment inflicts on social capacities and interpersonal relationships. Bhuller et al. (2020) find that among previously nonemployed individuals, incarceration in Norway increases participation in job training programs by 35 percentage points, with prisons offering rehabilitation programs, job training, and re-entry support.

Beyond state responsibility, societal actors play important complementary roles. Resocialization depends not only on whether offenders cease criminal behavior but also on whether others accept their change. Gålnander (2020), studying female desisters in Sweden, demonstrates that without social recognition and positive relational feedback, individuals cannot complete desistance. Civil society organizations fulfill this function in practice. Notable examples include Norway's WayBack, operated by former offenders and providing peer support and cross-agency coordination for housing, education, and addiction treatment. Sweden's KRIS offers peer-based lifestyle reconstruction. Denmark's High:five facilitates employment and educational transitions for young people with records (Persson and Svensson, 2018; Todd-Kvam and Ugelvik, 2019).

Enterprises are also expected to contribute to reintegration by providing employment, participating in transitional training arrangements, and maintaining labor connections with previously employed offenders. For example, Norway's Bastøy prison farm allows inmates to participate in labor and skills training during incarceration (Nyvoll, 2025). Comparative Nordic research noted that the relatively organized and high-employment labor markets of Scandinavian countries make enterprise absorption capacity a critical factor in resocialization outcomes Aaltonen et al. (2017). Even with institutional support, individuals retain responsibility for self-adjustment and proactive reintegration. In certain community corrections arrangements, offenders are required to complete specified hours of unpaid labor and participate in programs, treatment, or other activities aimed at preventing recidivism under probation supervision.

In summary, Scandinavian countries have developed a resocialization model grounded in active state intervention and complemented by societal actors' collaborative participation. This model may be rooted in the welfare state tradition, under which social democratic states treat poverty, unemployment, and social exclusion not as individual failures but as social risks requiring public institutional intervention (Esping-Andersen, 1990). Under this institutional philosophy, Scandinavian countries seek to minimize the additional harm imprisonment inflicts on individuals' social capacities and to create conditions for reintegration through institutional design. In practice, this model is reflected in lower recidivism rates and higher social inclusiveness (Fowler, 2015), constituting the key feature distinguishing it from models dominated by individual responsibility or single-state intervention.

4.3. Canada: a state-responsibility-dominated model

Canada exhibits a criminal record governance model in which the state assumes primary responsibility for resocialization. Criminal records are treated as public information to be managed centrally by the state, with use restricted and social consequences actively mitigated under appropriate conditions (McAleese and Latimer, 2017). Through a unified record suspension system, anti-discrimination provisions, and employment support, the state proactively limits label diffusion, giving this model a distinctly stronger state-responsibility orientation.

Canada's system for restricting access to criminal records centers on record suspension, supplemented by expungement. The Criminal Records Act is the governing federal statute. Individuals who have completed their sentences and satisfied the statutory waiting period may apply to the Parole Board of Canada for a record suspension. Once granted, the criminal record is kept separate and apart from other criminal records in the Canadian Police Information Centre maintained by the Royal Canadian Mounted Police, and is generally no longer disclosed to employers, landlords, or other private actors. The Act sets out detailed rules regarding eligibility, waiting periods, and exceptions for certain serious offenses.

However, McAleese and Kilty (2019) note that since 2010, reforms surrounding pardon and record suspension have become notably more restrictive, including raising application fees, extending waiting periods, and excluding certain applicants. This shift has transformed the originally more inclusion-oriented pardon system into a more exclusionary record suspension regime, limiting opportunities for social and economic reintegration. This indicates that while Canada assigns the state a primary governance role, the degree to which state responsibility is realized remains contingent upon specific legislative orientations.

The Expungement of Historically Unjust Convictions Act supplements this framework by providing a mechanism for permanently destroying records of convictions deemed historically unjust, such as convictions under offenses that have since been repealed or are no longer considered criminal under contemporary law. The Canadian Human Rights Act further lists "conviction for an offense for which a pardon has been granted or in respect of which a record suspension has been ordered" as a prohibited ground of discrimination, meaning the state not only limits label diffusion through the criminal record system but also prevents employers and service providers from using prior convictions as a basis for ongoing exclusion. Together, these measures aim to restore practical opportunities for individuals with records in employment, housing, and social participation, while reinforcing their confidence in the possibility of a

fresh start (Adams et al., 2017).

However, state responsibility does not mean resocialization barriers have been fully eliminated. Despite Correctional Service Canada's Correctional Industry Program's integration of employment training throughout the federal sentence and community employment services upon release, approximately half of federal releasees remain without employment roughly 14 years after release (Babchishin et al., 2021). One contributing factor is uneven protection across provinces. Ontario's Human Rights Code protects against employment discrimination based on pardoned convictions and provincial offenses, requiring employers to demonstrate a bona fide occupational connection before refusing to hire.² In contrast, Alberta's Human Rights Act does not include criminal record as a protected ground, leaving individuals with records substantially less protected. Even with civil society organizations helping individuals navigate background screening, the success of resocialization ultimately depends on whether institutional rules and market structures genuinely change (McAleese, 2026).

In sum, Canada occupies an intermediate position between the U.S. individual-responsibility-dominated model and the Scandinavian multi-actor shared responsibility model. Unlike the United States, Canada does not leave the long-term social consequences of criminal records primarily to market screening and individual self-repair. Yet unlike Scandinavian countries, Canada's record relief remains petition-based, and individuals still bear significant procedural burdens for resocialization. Canada thus represents a state-responsibility-led model of criminal record governance.

4.4. China: a strong tendency toward individualized responsibility

As a representative civil-law jurisdiction with a strong tradition of state authority and paternalistic judicial practice, China would in principle be expected to assign the state primary responsibility for criminal record governance. In practice, however, the existing system exhibits a pronounced tendency toward individualized responsibility, manifested in three respects.

First, China's sealing regime applies exclusively to juvenile records. No institutional mechanism exists for sealing or expunging adult criminal records. Since 2012, China has systematically constructed its criminal record infrastructure following the Opinions on Establishing a Criminal Record System for Offenders, jointly issued by the Supreme People's Court, the Supreme People's Procuratorate, and three other central agencies. Criminal records are currently stored across four databases maintained by public security organs, courts, procuratorates, and the prison system, and also appear in population, entry-exit, and fugitive databases (Zhang et al., 2026). China's highly informatized administrative governance further amplifies the impact of criminal records on social reintegration. Once integrated into interconnected information systems spanning departments, administrative levels, and regions, criminal records become governance data repeatedly accessed in employment screening, qualification review, public security administration, and other regulatory contexts (Bai, 2026; Liang et al., 2018).

Second, Article 100 of the Criminal Law establishes a self-reporting obligation requiring individuals to disclose their criminal records when enlisting in the military or seeking employment. This obligation has expanded into extensive occupational disqualification provisions. According to our survey of China's legislation database, currently effective regulations referencing prior convictions date back to 1995 and have grown to 383 in number over three decades. Notably, unlike other jurisdictions where employers bear the primary responsibility for conducting background investigations, China's system places the disclosure burden directly on offenders. Empirical research confirms the resulting barriers: full-time employment among released individuals drops to 49.74%, with the remaining half confined to temporary, physically demanding jobs with frequent employer changes (Li and Lin, 2025). Although China has established a resettlement assistance system (*anzhi bangjiao*) providing guidance, support, and management for individuals within five years of release, its functional emphasis remains on social stability and recidivism prevention rather than counteracting the long-term exclusionary effects of criminal records (Ren and Lu, 2020). One reason is that the resettlement system's operational logic reflects a control-oriented rather than reintegration-oriented approach, centering on information verification through management information systems, mandatory reception protocols for key individuals, and dual-registration between household and residential jurisdictions (Ding and Cheng, 2023).

Third, China's policy of publishing judicial decisions online has resulted in widespread dissemination of conviction information, further shifting the burden of stigma management onto individuals (Liebman et al., 2020). Although the policy aims to promote procedural transparency and judicial accountability, personal information about offenders is inevitably disclosed to the public in the process (Bao, 2025). Published decisions also carry the risk of secondary dissemination. In a 2021 defamation case, for example, the defendant posted excerpts from a publicly available judgment revealing the plaintiff's suspended sentence for electricity theft on Tiktok and Weibo, causing severe psychological distress and disrupting the plaintiff's work and personal life (*Does the public disclosure of another person's criminal information constitute an infringement?*, 2026).

This individual-centered governance model is not accidental but stems from a confluence of institutional factors. China's relatively low crime and recidivism rates reduce the structural pressure for a broad sealing regime. The country's vast population means that a comprehensive sealing system would impose substantial administrative costs, prompting the state to prioritize information accessibility and risk management over record suppression. A governance orientation that places public security at the forefront further

² See *Human Rights Code*, R.S.O. 1990, c. H.19, ss. 5(1), 24(1)(b). Section 5(1) provides: "Every person has a right to equal treatment with respect to employment without discrimination because of race, ancestry, place of origin, colour, ethnic origin, citizenship, creed, sex, sexual orientation, gender identity, gender expression, age, record of offences, marital status, family status or disability." Section 24(1)(b) provides: "the discrimination in employment is for reasons of age, sex, record of offences or marital status if the age, sex, record of offences or marital status of the applicant is a reasonable and bona fide qualification because of the nature of the employment."

emphasizes information retention and predictive risk management, narrowing the space for robust sealing mechanisms.

Within this governance framework, criminal records have historically served as instruments of crime prevention and social management. Yet as China's crime structure shifts decisively toward minor offenses, the collateral consequences of a criminal record, including barriers to employment, education, and social participation, fall disproportionately on those convicted of less serious crimes. According to the [China Law Yearbook \(2003-2024\)](#), approximately 26.49 million individuals were adjudicated as criminal defendants during this period, the vast majority now carrying records for minor offenses. The 2024 White Paper on Criminal Prosecution confirms this structural transformation. Cases sentenced to three years of imprisonment or below accounted for over 80% of all criminal prosecutions, and this proportion has continued to rise over the past decade. The mismatch between an expanding population burdened by criminal records and the diminishing severity of their underlying offenses has prompted growing calls for a minor criminal record expungement system.

Under China's current regime, the circulation and use of minor criminal records exhibit a clear pattern of responsibility misalignment, with record-related burdens disproportionately shifted onto individuals and even their families or social networks. The central task for reforming China's sealing system therefore lies in reallocating responsibility among the state, market actors, and social institutions, rather than merely establishing a formal sealing mechanism.

5. A relational responsibility and relational autonomy-based model for sealing criminal records

In the digital era, the normative foundations and institutional functions of criminal record-sealing regimes must undergo a fundamental transformation. The comparative analysis reveals three structural deficits that cut across existing models. First, all four jurisdictions treat criminal record harms primarily as individual-level consequences; none systematically maps the vertical and horizontal relational mechanisms through which records acquire their social force. Second, even the most comprehensive regime (Scandinavia) frames sealing as information control rather than as a means of restoring the relational conditions for autonomy. Third, responsibility allocation remains binary, either individualized (United States, China) or state-centered (Canada), rather than distributed among the multiple actors who generate and amplify record-related harms. These three gaps correspond to the three components of the Relational Sealing Model proposed below: relational harm identification addresses the first deficit; relational autonomy restoration reorients sealing's objective beyond the second; and relational responsibility redistribution restructures the governance architecture exposed by the third.

5.1. Relational harm identification: understanding the structural mechanisms that generate the effects of criminal records

The first step in constructing a relational sealing model is to accurately identify the mechanisms through which criminal records operate across multiple layers of social relations. The harm produced by minor criminal records does not arise from the mere existence of the information itself; rather, it is generated through the mechanisms embedded in vertical relationships (state institutions and administrative processes) and horizontal relationships (communities, markets, and digital platforms).

Relational harms exhibit three core characteristics. First, the harm is cumulative across institutional chains. Criminal records are repeatedly copied and reused in policing systems, administrative approvals, employment screening, financial risk control, and other institutional processes ([Denver et al., 2017](#)), producing layer-by-layer amplification. This cumulative effect is not a natural extension of individual misconduct but the outcome of institutional practices that continuously reactivate the force of the record.

Second, the harm expands through technology. Algorithmic inference, pattern recognition, and information-retrieval tools in digital environments enable criminal records to be automatically resurfaced and used predictively. Even when the law permits sealing, digital systems may reconstruct risk categories from behavioral traces, allowing the record to persist as an inferred or *de facto* criminal history.

Third, the harm is reinforced through social narratives and group-based identification. Media coverage, online discourse, and group-labeling dynamics often attach minor criminal incidents to particular occupations, regions, or social identities, producing horizontal spillover effects. These group-level harms highlight the need for sealing regimes to address structural inequalities embedded in social relations ([Viljoen, 2021](#)).

The purpose of relational harm identification is to emphasize that the proper object of a sealing regime is not the criminal record as an isolated datum, but the relational structures and diffusion mechanisms through which the record acquires its social power. Without accurately identifying these generative mechanisms, sealing reforms risk failing to reach the root of the problem.

5.2. Relational autonomy restoration: the objective of China's sealing regime for minor criminal records

Traditional sealing regimes focus primarily on concealing information. Yet formal concealment alone fails to achieve meaningful reintegration. Individuals pursuing desistance must still navigate persistent relational stigma, where community knowledge of a criminal past circulates independently of any formal record ([Gällnander, 2020](#)). A relational perspective therefore suggests that the true aim of sealing is not concealment but restoration. Specifically, the restoration of the capacity for action, meaningful choice, and social standing among those whose lives are restricted by criminal records ([Braithwaite, 1989](#)). Because these harms extend beyond the offender to family members and algorithmically associated third parties, restoring autonomy requires coordinated interventions at the institutional, technological, and social levels.

Institutionally, a sealing regime for minor criminal records should restrict access, define reasonable retention periods, and strictly limit permissible uses to prevent criminal records from becoming sources of long-term institutional exclusion.

Technologically, digital platforms' capacity to reproduce and disseminate criminal records must be regulated. Individuals with minor records should be granted the right to be forgotten (Ausloos, 2012), enabling timely removal of such data from digital environments and ensuring controlled visibility of criminal information.

Socially, qualification and background-check systems should be reformed so that the mere existence of a criminal record is no longer dispositive for employment or educational admission decisions. Public discourse should shift toward acceptance and reintegration, rebuilding the relational resources necessary for successful reentry.

Under digital governance conditions, criminal records in China also impose secondary harms on close family members, who may face denied school admissions, impaired creditworthiness, and diminished social standing. The principle of personal culpability holds that criminal responsibility should be borne solely by the offender, yet digital information infrastructures enable record-related consequences to spill over into kinship networks. From the perspective of relational responsibility, criminal record governance should therefore establish clear boundaries preventing the attribution of criminal stigma to relatives and prohibiting the transfer of risk to family members or other significant social relations.

In horizontal data systems, individual records are often converted into group attributes, dragging all persons sharing similar traits into a generalized risk category. This not only neglects intra-group heterogeneity but also contributes to the reproduction of social inequality. The legitimacy of horizontal data linkages depends on a condition of substantive relevance, meaning that group characteristics may be used only when they are directly connected to criminal behavior or risk-prevention objectives (Viljoen, 2021). Thus, digital governance of criminal records must enforce standards of associative legitimacy, strengthen review mechanisms for record linkage, and prohibit the misuse of irrelevant or weakly correlated group features.

5.3. Redistributing relational responsibility: from individualism to a multi-actor responsibility structure

Within traditional liberal governance frameworks, sealing regimes are often premised on the implicit assumption that the consequences of a criminal record should be borne entirely by the individual offender. As a result, the burdens of applying for sealing, repairing damaged social relationships, and mitigating the adverse effects of a criminal record fall almost exclusively on the individual.

However, if the harms associated with a criminal record are jointly produced by multiple actors, then responsibility must likewise be redistributed across those actors. The allocation of responsibility can no longer remain individualistic; instead, it must reflect the relational and structural processes through which criminal record harms are generated.

State responsibility is reconceptualized as a shift from acting merely as a custodian of criminal records to serving as an institutional agent of relational repair. The state is not only the generator of criminal records but also the primary driver of their long-term circulation and cross-sector reuse. In China, the state's responsibility is to establish a systematic regime for sealing minor criminal records and to align this regime with personal data-protection frameworks so as to realize effective record sealing in the digital era. In constructing such a system, at least three tasks are essential.

First, China needs to establish a formal system for sealing minor criminal records. The mainstream view among Chinese scholars is that the sealing threshold should encompass offenses punishable by no more than one year of imprisonment. According to the *China Law Yearbook* (2017–2024), approximately 7.59 million defendants, representing 61.6% of all convicted individuals, received sentences of up to one year, including detention, suspended sentences, public surveillance, fines, deprivation of political rights, and deportation. In our view, this threshold is generally appropriate, as it could meaningfully de-criminalize large groups of minor offenders and help alleviate the structural problem of over-criminalization in China. Certain categories of offenses, however, should be excluded from sealing due to their high degree of illegality or strong societal resistance, including crimes endangering national security, terrorism, sexual offenses, drug crimes, organized-crime offenses, and corruption offenses. With respect to the mechanism for initiating sealing, two models exist internationally, namely *ex officio* sealing carried out by judicial authorities and application-based sealing initiated by the individual. We favor the former. Application-based models require discretionary review of eligibility, which can produce administrative burdens and potential integrity risks. *Ex officio* sealing reduces compliance costs and enhances operational feasibility.

Second, China needs to reform related criminal record institutions, including the self-reporting obligation, occupational disqualification rules, and online publication of judicial decisions. The self-reporting requirement under Article 100 of the *Criminal Law* currently exempts only juvenile offenders. It should be broadened to cover adults with minor convictions. Occupational-entry restrictions should undergo constitutional, necessity, and proportionality review to determine whether specific positions truly require a clean criminal record. For roles with limited public-safety relevance, entry barriers for minor offenders should be removed. Meanwhile, China has significantly reduced the number of judicial decisions published online, reflecting greater attention to personal-information protection. Judicial documents falling within the scope of minor-record sealing should no longer be published on public platforms. It should be noted that restricting the scope of judicial decision publication may also raise concerns about limits on judicial transparency and accountability. How to achieve a reasonable balance between personal information protection and judicial openness remains a topic warranting further exploration in future research.

Third, China needs to integrate minor criminal record sealing with personal-information protection. Article 10 of the *Implementation Measures for the Sealing of Juvenile Criminal Records* requires that sealed records be treated as non-public under the *Personal Information Protection Law*. The future minor criminal record sealing regime should adopt the same approach. Under Article 60 of the PIPL, the Cyberspace Administration of China is the competent authority for personal-information protection. After courts issue sealing orders, they should transmit the decision to the CAC, which would notify online platforms and media outlets to remove or restrict access to the relevant information. In addition, the CAC should establish continuous regulatory mechanisms for judicial data, public databases, and commercial background-check industries, imposing sanctions for the unlawful collection, retention, or disclosure of

sealed criminal records.

The responsibilities of social actors center on correcting the structural biases embedded in prevalent risk-avoidance practices. Social actors primarily include employers, digital platforms, and public service institutions.

Employer responsibility involves conducting necessity reviews of occupational restrictions and imposing strict limits on criminal record inquiries. As key decision-makers in the labor market, employers should bear responsibilities proportionate to their substantial power over individuals' livelihood opportunities. Encouragingly, some employers in China have begun to recognize and assume responsibility for supporting the reintegration of individuals with criminal records. For example, the Henan-based retailer Pang Donglai issued a public statement in 2025 announcing the recruitment of formerly incarcerated individuals, initially accepting those with minor or moderate offenses and gradually opening limited positions for individuals with more serious convictions, explicitly advocating non-discrimination and the rejection of stigmatizing attitudes (Zhang, 2025). This initiative has served as an example for many other employers and prompts a reconsideration of employers' obligations in the governance of criminal record information.

On the one hand, employers may access criminal records only with the consent of the record-holder, and only for the purpose of obtaining essential information, specifically the offense, the sentence imposed, and the manner in which the sentence was carried out. On the other hand, although employers may possess certain background-check authority during hiring, such authority must be strictly confined to situations where the inquiry is necessary and proportionate, that is, when directly related to occupational safety or professional integrity. Employers must not request information beyond what is minimally required for the position.

Furthermore, sector-specific regulatory frameworks should be promoted. Industries such as finance, education, and occupations involving contact with minors may adopt more precise and narrowly tailored disqualification rules. Each sector may set criminal record requirements aligned with its particular operational characteristics and relevant public interests. For instance, education-related positions involving minors may legitimately prohibit employment of individuals convicted of rape, sexual assault, or child molestation.

The responsibilities of digital platforms include filtering criminal record information and ensuring its timely deletion. Section 5 of the *Personal Information Protection Law* establishes the obligations of information processors. As the primary intermediaries for information dissemination, digital platforms are required to undertake responsibilities of filtering, restricting the display of, and promptly deleting criminal record information. As noted above, once a platform receives a sealing-assistance notice from the national cyberspace authority, it has a duty to screen for criminal record data and must not allow criminal record information, particularly sealed records, minor-offense records, or juvenile records, to appear automatically in search results, recommendation feeds, user profiles, or public indices. In addition, platforms bear ex post remedial obligations. When criminal record information is posted, reposted, or circulated in comment sections, platforms must promptly remove, block, or de-index such content to prevent further dissemination and long-term digital persistence. Platforms must also provide a notice-and-takedown mechanism that allows individuals to request deletion of posts, comments, or search results containing their criminal record information.

The responsibilities of public service providers consist in prohibiting unwarranted exclusion and discriminatory treatment. Public service entities, including social assistance agencies, housing authorities, and welfare institutions in both public and private forms, bear a responsibility to prevent unwarranted exclusion and discriminatory treatment. According to one empirical study in China, 25.8% of formerly incarcerated individuals had no access to any form of social insurance (Wu and Shi, 2014). Moreover, in certain localities, credit-evaluation systems link criminal records to eligibility for household registration, thereby creating structural barriers to reintegration.

Institutional design must therefore make explicit that access to social insurance, medical assistance, housing support, and minimum-living guarantees may not be conditioned on a person's criminal record status, nor may such services be denied or delayed on ambiguous grounds such as social credit, family risk, or unspecified diverse records.

Public service institutions also need proactively identify the specific vulnerabilities faced by individuals with criminal records, including disadvantages in livelihood security, health, psychological well-being, and social participation, and must provide reasonable accommodations. These may include simplified application procedures, dedicated service windows or assistance personnel, mechanisms allowing supplemental explanations for missing documentation, and employment or social-insurance counseling.

Finally, a formal complaint and remedy mechanism should be established to address discriminatory treatment. When confronted with disparate access to public services, individuals with minor criminal records should be able to seek relief from justice authorities, thereby ensuring meaningful procedural protection for this population.

6. Conclusion

In the digital era, minor criminal records are no longer the incidental by-products of individual wrongdoing. Instead, they have become relationally produced artifacts, continuously replicated, amplified, and regenerated through the combined operations of state institutions, market mechanisms, and digital infrastructures.

Returning to the two questions posed at the outset, this article has shown that, first, minor criminal records in the digital era must be reconceptualized as relationally produced harms rather than individual liabilities. Their risks are generated through vertical institutional chains and horizontal social networks that extend far beyond the offender. Second, the transformation from individual forgiveness to relational governance requires a concrete redistribution of responsibility. The state must shift from record custodian to institutional agent of relational repair, market actors must subject background screening to necessity and proportionality constraints, and digital platforms must bear obligations of filtering, de-indexing, and timely deletion.

The comparative analysis reveals that existing regimes range from individual-responsibility-dominated models in the United States to multi-actor shared responsibility systems in Scandinavia, with Canada occupying a state-led intermediate position and China

exhibiting a pronounced gap between its strong state capacity and the individualized burden it imposes on offenders. None adequately addresses the relational mechanisms through which digital-era criminal records generate harm. Drawing on relational responsibility and relational autonomy, this article therefore proposes a Relational Sealing Model whose core function is not merely to hide information but to restructure responsibility allocation and repair the relational conditions necessary for autonomy.

The model offers three theoretical contributions. First, it reframes the normative foundation of sealing by shifting from a privacy protection paradigm to one grounded in relational justice. Second, it redesigns the responsibility structure by establishing a multi-actor governance framework in which the state, market actors, and digital platforms are treated as co-responsible agents. Third, it redefines the governance subject by extending protection to family members who are indirectly implicated and innocent third parties who are unjustly associated through horizontal data linkages.

This study has certain limitations. The theoretical analysis does not fully address counterarguments rooted in public safety, deterrence, and victims' rights, and the persuasiveness of the model may be constrained when balancing competing normative values. Future research should further develop the technological governance dimension, particularly the regulation of algorithmic exclusion and predictive risk systems. As the global population bearing criminal records continues to grow while the severity of underlying offenses declines, the question of how legal systems allocate the consequences of a criminal past is not merely a technical matter of information management but a fundamental test of relational justice.

CRediT authorship contribution statement

Zhe Wang: Writing – original draft, Methodology, Investigation, Formal analysis. **Wanqiang Wu:** Writing – review & editing, Supervision, Project administration, Formal analysis, Conceptualization.

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The datasets used and/or analyzed during the current study are available from the corresponding author on reasonable request.

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The authors declare that they have no competing interests.

References

- Aaltonen, M., Skardhamar, T., Nilsson, A., Andersen, L.H., Bäckman, O., Estrada, F., Danielsson, P., 2017. Comparing employment trajectories before and after first imprisonment in four nordic countries. *Br. J. Criminol.* 57, 828–847. <https://doi.org/10.1093/bjc/azw026>.
- Adams, E.B., Chen, E.Y., Chapman, R., 2017. Erasing the mark of a criminal past: Ex-offenders' expectations and experiences with record clearance. *Punishm. Soc.* 19, 23–52.
- Agan, A., Starr, S., 2017. The effect of criminal records on access to employment. *Am. Econ. Rev.* 107, 560–564.
- Ausloos, J., 2012. The 'right to be forgotten'—worth remembering? *Computer Law & Security Review* 28, 143–152.
- Babchishin, K.M., Leslie-Anne, K., Mularczyk, K.P., 2021. Economic outcomes of Canadian federal offenders. *Public Safety Canada*.
- Bai, L., 2026. Criminal record expungement and resocialisation: german experience and reflections for China. *International Journal of Law, Crime and Justice* 84, 100808. <https://doi.org/10.1016/j.ijlcrj.2025.100808>.
- Banwell-Moore, R., 2024. Restorative justice: adopting a whole system approach to address cultural barriers in criminal justice. *Criminol. Crim. Justice* 24, 1028–1046.
- Bao, W., 2025. Reconciliation and pathways: sealing records of minor offences under the principle of public trial. *Comparative Law Research* 3, 151–163.
- Bekendtgørelse nr. 218 af 27. 2001. Marts 2001 Om Det Centrale Kriminalregister. *Lovtidende A, (Denmark)*.
- Berghuis, M., 2018. Reentry programs for adult male offender recidivism and reintegration: a systematic review and meta-analysis. *Int. J. Offender Ther. Comp. Criminol.* 62, 4655–4676. <https://doi.org/10.1177/0306624X18778448>.
- Bhuller, M., Dahl, G.B., Løken, K.V., Mogstad, M., 2020. Incarceration, recidivism, and employment. *J. Polit. Econ.* 128, 1269–1324. <https://doi.org/10.1086/705330>.

- Bladini, M., Andersson, W.S., 2020. Swedish rape legislation from use of force to voluntariness - critical reflections from an everyday life perspective. *Bergen Journal of Criminal Law & Criminal Justice* 8, 31–58. <https://doi.org/10.15845/bjclcj.v8i2.3241>.
- Braithwaite, J., 1989. *Crime, Shame and Reintegration*. Cambridge University Press.
- Chen, X., 2023. Theoretical discussion on the regulation of minor crimes. *China Criminal Science* 3–18. <https://doi.org/10.19430/j.cnki.3891.20230601.001>.
- China Law Yearbook Editorial Board, 2003–2024. *China Law Yearbook [中国法律年鉴]*. China Law Yearbook Press, Beijing.
- Christman, J., 2004. Relational autonomy, liberal individualism, and the social constitution of selves. *Philos. Stud.: An International Journal for Philosophy in the Analytic Tradition* 117, 143–164.
- Connolly, E.J., Lewis, R.H., Boisvert, D.L., 2017. The effect of socioeconomic status on delinquency across urban and rural contexts: using a genetically informed design to identify environmental risk. *Crim. Justice Rev.* 42, 237–253.
- Dagan, H., Dorfman, A., 2016. Just relationships. *Columbia Law Rev.* 116, 1395–1460.
- Dao, L., 2023. Mitigating and bordering: the dual nature of Canadian collateral consequences of conviction. *Criminol. Crim. Justice* 23, 588–607.
- DeMarco, L.M., 2023. Criminal record stigma, race, and neighborhood inequality. *Criminology* 61, 705–730. <https://doi.org/10.1111/1745-9125.12347>.
- Denver, M., Pickett, J.T., Bushway, S.D., 2018. Criminal records and employment: a survey of experiences and attitudes in the United States. *Justice Q.* 35, 584–613. <https://doi.org/10.1080/07418825.2017.1340502>.
- Denver, M., Siwach, G., Bushway, S.D., 2017. A new look at the employment and recidivism relationship through the lens of a criminal background check. *Criminology* 55, 174–204.
- Ding, W., Cheng, Z., 2023. The current situation, dilemmas, and responses of judicial offices in the process of rule-of-law-based grassroots governance: an analysis based on 132 judicial offices. *Journal of Central China Normal University (Humanities and Social Sciences)* 62, 31–42.
- Does the public disclosure of another person's criminal information constitute an infringement?, 2026. https://mp.weixin.qq.com/s/Zpe8qPQk_PhIYc1hVxNTmQ.
- Dworkin, G., 1988. *The Theory and Practice of Autonomy*. Cambridge University Press.
- Esping-Andersen, G., 1990. *The Three Worlds of Welfare Capitalism*. Princeton UP.
- Forskrift om behandling av opplysninger i politiet og påtalemyndigheten (politiregisterforskriften), 2014. *Norsk Lovtidend*.
- Fowler, M., 2015. The human factor in prison design: contrasting prison architecture in the United States and Scandinavia. Presented at the 103rd ACSA Annual Proceedings: the Expanding Periphery and the Migrating Center, pp. 373–380.
- Frankfurt, H., 2018. Freedom of the will and the concept of a person. In: *Agency and Responsibility*. Routledge.
- Gälnder, R., 2020. 'Shark in the fish tank': secrets and stigma in relational desistance from crime. *Br. J. Criminol.* 60, 1302–1319. <https://doi.org/10.1093/bjc/azaa015>.
- Herring, J., 2019. *Law and the Relational Self*. Cambridge University Press.
- Jonson, C.L., Cullen, F.T., 2015. Prisoner reentry programs. *Crime Justice* 44, 517–575. <https://doi.org/10.1086/681554>.
- Lag (1998:620) om belastningsregister, 1998. *Svensk Författningssamling (SFS)*.
- Lageson, S.E., 2026. Criminal data function creep. *J. Crim. Law Criminol.* 116, 113.
- Lageson, S.E., Corda, A., 2024. Chasing a clean slate: the shifting roles of privacy and technology in criminal record expungement law and policy. *Harv. J. Law Technol.* 38.
- Li, Z., Lin, X., 2025. Re-employment barriers: an empirical study on employment opportunities for Chinese ex-offenders. *International Journal of Law, Crime and Justice* 82, 100772. <https://doi.org/10.1016/j.ijlclj.2025.100772>.
- Liang, F., Das, V., Kostyuk, N., Hussain, M.M., 2018. Constructing a data-driven society: China's social credit system as a state surveillance infrastructure. *Policy Internet* 10, 415–453. <https://doi.org/10.1002/poi3.183>.
- Liebmán, B.L., Roberts, M.E., Stern, R.E., Wang, A., 2020. Mass digitization of Chinese court decisions. *J. Law Courts* 8 (2), 177–201.
- Mackenzie, C., Stoljar, N., 2000. *Relational Autonomy: Feminist Perspectives on Autonomy, Agency, and the Social Self*. Oxford University Press.
- Madden, M., Gilman, M., Levy, K., Marwick, A., 2017. Privacy, Poverty, and Big Data: Matrix of Vulnerabilities for Poor Americans, 95. *Washington University Law Review*, pp. 53–126.
- Manikis, M., 2022. Recognising state blame in sentencing: a communicative and relational framework. *Camb. Law J.* 81, 294–322. <https://doi.org/10.1017/S0008197322000198>.
- Mayer-Schönberger, V., 2011. *Delete: the virtue of forgetting in the digital age*. In: *Delete*. Princeton University Press.
- McAleese, S., 2026. Finding employment in the stigma machine: reflections from Canada's penal voluntary sector. *International Journal of Law, Crime and Justice* 84, 100828. <https://doi.org/10.1016/j.ijlclj.2026.100828>.
- McAleese, S., Kilty, J., 2019. Stories matter: reaffirming the value of qualitative research. *Qual. Rep.* 24, 822–845. <https://doi.org/10.46743/2160-3715/2019.3713>.
- McAleese, S., Latimer, C., 2017. *Reforming the Criminal Records Act*. Canadian Civil Liberties Association.
- McElhattan, D., 2024. Criminal background check laws and labor market inequality in the United States. *Criminol. Publ. Pol.* 23, 391–429.
- Nedelsky, J., 2012. *Law's Relations: a Relational Theory of Self, Autonomy, and Law*. Oxford University Press.
- Nyvoll, P.S., 2025. 'Exceptional' open prisons under pressure: austerity, instability and distrust. *Br. J. Criminol.* 65, 1280–1297. <https://doi.org/10.1093/bjc/azaf018>.
- Park, G., 2019. The changing wind of data privacy law: a comparative study of the European Union's general data protection regulation and the 2018 California consumer privacy act. *UC Irvine Law Review* 10, 1455–1490.
- Peng, W., 2022. A study on the systematization of collateral consequences of crime in China. *Chinese Journal of Law* 44, 171–188.
- Persson, A., Svensson, K., 2018. Prisoner resettlement in Sweden. In: *Prisoner Resettlement in Europe*. Routledge, pp. 328–342.
- Prescott, J.J., Starr, S.B., 2019. Expungement of criminal convictions: an empirical study. *Harv. Law Rev.* 133, 2460–2556.
- Pressly, L., 2024. The right to be forgotten and the value of an open future. *Ethics* 135, 65–87.
- Procter-Legg, T., Hobson, J., Quimby, E., 2024. Restorative justice and social justice: an international perspective. *Contemp. Justice Rev.* 27, 218–238.
- Ren, Y., Lu, X., 2020. The system of resettlement and assistance. In: *A New Study on the Judicial Administrative System with Chinese Characteristics*. Springer, Singapore, pp. 149–185.
- Solove, D.J., 2022. The limitations of privacy rights. *Notre Dame Law Rev.* 98, 975–1036.
- Todd-Kvam, J., Ugjelvik, T., 2019. Rehabilitation and re-entry in Scandinavia. In: *The Routledge Companion to Rehabilitative Work in Criminal Justice*. Routledge, pp. 167–178.
- Tyler, E.T., Brockmann, B., 2017. Returning home: incarceration, reentry, stigma and the perpetuation of racial and socioeconomic health inequity. *J. Law Med. Ethics* 45, 545–557. <https://doi.org/10.1177/1073110517750595>.
- Ugwudike, P., 2022. Predictive algorithms in justice systems and the limits of tech-reformism. *Int. J. Crime Justice Soc. Democr.* 11, 85–99.
- Viljoen, S., 2021. A relational theory of data governance. *Yale Law J.* 573–654.
- Wu, P., Shi, F., 2014. Social capital and social exclusion: factor analysis of released prisoners returning to society. *J. Anhui Normal Univ.* 42, 584–590. <https://doi.org/10.14182/j.cnki.j.anu.2014.05.022>.
- Yao, L., 2025. A study on the construction of China's system for sealing minor criminal records. *Chinese Journal of Law* 47, 134–152.
- Zhang, C., 2025. Help a "Life that Has Fallen" Start Anew. *People's Daily*.
- Zhang, C., Zhang, B., Hong, Q., 2026. Crime data in mainland China: legal frameworks, accessibility, and research challenges. *J. Contemp. Crim. Justice* 42, 132–152. <https://doi.org/10.1177/10439862251387467>.

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